

Mind the Gael: Legal Compliance Checklist

A working checklist for the Mind the Gael platform (AI-powered mental performance and physical training plans, toolkit library, and blog) serving adult users (19-40) in the UK and Ireland.

This is a practical checklist, not legal advice. Have a solicitor review your final terms, privacy policy, and disclaimers before any paid launch.

Priority 1: Before public launch

Age gating (18+)

- Add a date of birth field to signup
- Block signups where DOB indicates under 18
- Use a neutral age gate (do not display the required age on the same screen as the DOB entry)
- Set a cookie or session flag so a failed attempt cannot immediately retry
- Store only an over-18 flag, not the full date of birth, unless you need it for another purpose
- Add to terms: "You must be 18 or over to use this service"
- Add to terms: accounts found to belong to under-18s will be closed
- Keep all marketing aimed at adult club players; never target school-age or minor-grade GAA audiences

In-app disclaimers (on both AI generators)

- Visible disclaimer on the Mental Performance Plan generator: AI-generated performance coaching, not medical, psychological, or therapeutic advice
- Visible disclaimer on the physical training plan generator: not medical or physiotherapy advice, consult a GP before starting a new training programme, stop if you feel pain
- Signpost real support services on the mental performance side (e.g. Samaritans UK 116)

123, Samaritans Ireland 116 123, text-based services) for anyone who needs more than performance coaching

- Note on both generators that AI output can contain errors and should be used with judgement
 - Place disclaimers at the point of use, not only in a footer or terms page
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Priority 2: Core legal documents

Terms of service

- 18+ eligibility clause
- Description of the service: performance coaching tools, not healthcare
- No warranty on outcomes (no guarantee of performance improvement)
- Limitation of liability, including exclusion of liability for injury arising from training, to the extent permitted by law
- Acceptable use rules (no abusive inputs, no attempts to misuse the AI, no scraping)
- Your intellectual property in the toolkit, blog, and platform content
- What users may do with generated plans (personal use only, or your chosen licence)
- Account suspension and termination rights
- Governing law and jurisdiction (decide: England and Wales, or Ireland)
- Right to modify the service and the terms, with notice

Privacy policy (UK GDPR and EU GDPR both apply)

- What personal data you collect (account details, inputs to the generators, usage data)
- Lawful basis for each processing purpose
- Explicit consent flow for any health-related data users enter into the generators (likely special category data)
- Disclosure that user inputs are sent to Anthropic's API, including international transfer to the US and the safeguard relied on (e.g. standard contractual clauses, data privacy framework)
- List of other processors (hosting on Vercel, analytics, email provider)

- Retention periods for accounts, inputs, and generated plans
- User rights: access, rectification, erasure, portability, objection, withdrawal of consent
- How to exercise rights and your contact details
- Complaint routes: ICO (UK) and Data Protection Commission (Ireland)
- Confirm whether you need to pay the ICO data protection fee (most UK data controllers do; it is inexpensive)

Cookies and tracking

- Cookie consent banner if you use analytics or any non-essential cookies
 - Cookie policy page listing cookies and purposes
 - Analytics blocked until consent is given (UK PECR and EU ePrivacy)
 - Consider privacy-friendly analytics (e.g. Plausible, Fathom) to reduce the consent burden
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Priority 3: AI-specific compliance

Transparency

- Clear labelling that plans are AI-generated (also supports EU AI Act transparency obligations phasing in through 2026; Irish users put you in scope)
- Statement that AI output may be inaccurate and is not reviewed by a qualified professional before delivery
- A way for users to report problematic or harmful output

Anthropic compliance

- Review Anthropic's Usage Policy and Commercial Terms for your use case
- Check requirements for health-adjacent and wellbeing use cases
- Confirm your 18+ policy aligns with Anthropic's requirements for consumer-facing products
- Keep your API usage within your agreed tier and terms

Safety guardrails

- System prompt instructions so the generators stay within performance coaching and redirect anything resembling a mental health crisis to support services
 - Decide how the product responds if a user discloses self-harm, disordered eating, or injury, and test it
 - Avoid the generators giving specific medical, nutrition, or rehabilitation advice
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Priority 4: Content and IP

Blog and toolkit

- All images licensed, your own, or properly attributed (no copyrighted GAA imagery, player photos, or crests without permission)
- No reproduction of copyrighted training materials or research beyond fair quotation
- Cite sources for any sports science claims
- Toolkit documents (GPT-001 onwards) marked with your copyright notice
- Decide whether to trademark the Mind the Gael name and logo (check existing marks in UK IPO and Irish IPO registries first)

Brand and claims

- No medical or therapeutic claims in marketing ("improves mental health" is risky; "supports mental performance" is safer)
 - Testimonials, if used, must be genuine and not imply guaranteed results
 - Comply with ASA (UK) and ASAI (Ireland) advertising codes once you market
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Priority 5: Operational and ongoing

- Data breach response plan (72-hour notification duty to ICO or DPC where required)
- Process for handling data subject access and deletion requests
- Records of processing activities (a simple document is fine at your scale)
- Review legal documents whenever you add features, especially anything touching payments or new data types

- If you add payments: consumer rights (14-day cooling off for digital services in UK and EU), refund policy, VAT position
 - Business insurance: consider professional indemnity and public liability once you have paying users
 - Solicitor review of terms, privacy policy, and disclaimers before paid launch
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Suggested order of work

1. Age gate and terms eligibility clause (about an hour)
2. Generator disclaimers and support signposting (about an hour)
3. Privacy policy and cookie banner (a day with templates, then review)
4. Full terms of service (a day with templates, then review)
5. Anthropic policy review and AI guardrail testing
6. Content and IP audit of blog and toolkit
7. Solicitor review before any paid or marketed launch